

***Social study of the child's situation
in view of the hearing in front of the
Court of Quebec - Youth Chamber***

Complimentary report

Child : **Barran Tsannie McGovern**
 Born on March 28th 2006

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 DYP Delegate

Written on December 28th 2022

SUBJECT : TSANNIE MCGOVERN, Barran
16 years old

Mother : TSANNIE, Jean

Father : MCGOVERN, James Robert

Legal custody : Father has full custody

Siblings : TSANNIE MCGOVERN, Paisley (10 years old)

Summary of the present measures:

The DYP is implicated with Barran and his family since February 18th 2021 in regards to a situation of physical abuse under article E) 1 of the Youth Protection Act where Barran was assaulted by another person and in regards to a situation of psychological ill treatment under article C) of the Youth Protection Act regarding his exposure to his parents' conflictual separation.

Evolution of the situation since September 7th 2022:

Since the writing of our last report 4 months ago, we have been able to better understand each person's point of view on the current situation.

Firstly, the father has always tried to understand and to respect his children's point of view and their opinion on everything, regardless of his personal opinion. For instance, he has openly told us that he would be open to allow and to help his children see their mother if that is what they want, regardless of his opinion. In that situation, he would contact various places for help (911, DYP, CLSC, community organizations) because he recognizes that a third party would be

necessary to handle the situation. Regarding his children's wellbeing, the father is in close communication with various organizations in order to ensure his children's needs are being met (Barran's school organization and his various health professionals; Paisley's school and her various health professionals). Furthermore, the father wants to receive help from the CLSC for his children, especially Paisley. In regards to the mother, the father is open to start communicating with her by email exclusively about their children as he recognizes it is difficult for her to have updates on her children because they refuse to have contacts with her.

Secondly, we have learned a lot about the mother and her implication with various organizations to better herself since the attack on Barran. The mother explained to us the various services she has participated in from organizations like Native Montreal and the Native Women's Shelter of Montreal such as programs for her alcoholism, programs to help find a job and psychological help. The mother admits that those services have helped her turn her life around for the better and have helped her understand her current situation with her children. For instance, she has been working full-time in a warehouse since May 2022 and has hopes to have a promotion in the near future. She recognizes that although she wants to have a relationship with her children right now, it is best to respect their rhythm and their opinion on the situation. She acknowledges that they are still young and that there is always the possibility to work on their relationship in the future, if they are willing to. Furthermore, the mother has been a lot more collaborative with our follow-up in the past months in comparison to our first contact with her and the previous year with the previous social worker. She admits herself that she is more appreciative of our presence and, because of it; we are able to have some "real" conversations that may be emotionally difficult for her that we would not have otherwise. As of late December, the mother insists on wanting the DYP to stay implicated because for her, we are the only way she can have updates on her children's wellbeing as of late.

As for Barran, his general position regarding his mother remains the same: he does not want to have communication or updates about his mother. In regards to communication with his mother, he received a voice message in September from Kristen, his older sister; however, the mother could be heard in the background, which deeply unsettled Barran. Except one time in November, when he accepted that we give him an update and a handwritten letter from his mother, Barran does not want communication with his mother. Furthermore, he strongly does not want to work on the relationship with his mother, as he is worried she might be involved in the attack. However, he has told us that when the police find the culprit and her mother is not involved, he would be open to work on their relationship. In that case, Barran has told us that he would be open to reach out to Native Montreal or another organization to support him in working their relationship. He has started his psychological follow-up at the Jewish Hospital in October. Both Barran and his father tell us that it has been going well thus far.

Regarding the investigation surrounding the assault on Barran in February 2021, the police investigator informed us that they are closely collaborating with the Sûreté of Québec on the investigation and that they are assessing all investigative leads. However, in regards to the threats Barran received by text message this past July; the police have found the person responsible: a random teenager with no connections to his assault.

Summarized opinion:

In summary, both parents have different point of views on the situation and the implication of the DYP. Firstly, the father wants to close the file and wants to benefit from help from the CLSC instead. He believes that the DYP has not helped his family as much as he had wished and that the CLSC would be better suited to accompany his family for the future. The father reiterates that he wants

to close this chapter with the DYP in order for his family to start healing from it all. On the other hand, the mother wants the file to remain open at the DYP as she believes it is her only form to receive news about her children and currently her only way to reach out to them. She has been collaborating a lot more with our implication since September and she has been trying to respect her children's rhythm and opinion on the situation. The mother reiterates that she will not stop fighting for her kids and that she will not abandon her role in their life. She recognizes that they are still young and that many things can change in the future regarding their relationship.

Both children maintain their initial stance, which is to refuse all communications with their mother and not to receive news about her. In our opinion, Paisley will have more difficulties building a relationship with her mother compared to Barran due to her being exposed to more hardships while living with her mother for many years.

Recommendations:

We recommend that Barren Tsannie Mc Govern situation remains deemed compromised in terms of security and development under article 38 e)1 et c) of the Youth Protection Law and to order the following protective measures:

- That the adolescent remains with his father;
- That contact between the adolescent and his mother be suspended;
- Should the adolescent wish to reconnect with his mother, that the contacts be determined jointly between the parties in terms of terms, frequency, duration and degree of supervision required; AND prohibit the mother from being intoxicated during these contacts;
- That the contacts between the adolescent and his older sister Kristen be determined by the DYP in terms of the frequency and modalities, and that they are exercised according to the wishes and interests of the child

- That the adolescent has access to all health care and therapeutic services required by her situation, in particular that he receives psychological follow-up related to his trauma;
- That the adolescent and his parents collaborate in the measures ordered;
- Recommend that the mother take steps related to her personal difficulties, particularly to continue services with Native Montreal;
- That aid, counsel and assistance be provided to the adolescent and his family.

All the above for a period of 6 months.

Javier Alejandro Ortiz-Celada, T.S.
DYP Delegate

Équipe de services spécialisés (14-17 ans)
Service

December 30 2022
Date